

CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHETT SALZMAN

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 09/12/2025**

FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Plaintiff American Express National Bank (“Plaintiff”) filed a Motion to Enter Judgment on September 12, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

Background

The parties entered into that certain settlement agreement filed on July 11, 2023 (the “Settlement Agreement”), the terms of which included a stipulation for entry of judgment in the amount of \$7,869.86 plus costs, less any credits, in the event of a default by the defendant Chett Salzman (“Defendant”) in the payment of a reduced amount of \$5,945.00, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed September 12, 2025 (“Supporting Declaration”), ¶¶5-6 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶2, 9 and 10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$2,167.35 due and owing, plus costs of \$367.90. See Supporting Declaration, ¶¶6-7; see Memorandum of Costs filed September 12, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,167.35, plus costs of \$367.90, for a total judgment of \$2,535.25.
4. Plaintiff’s submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

3. 9:00 AM CASE NUMBER: L24-00582
CASE NAME: WELLS FARGO BANK, N.A. VS. MARCO SALMERON
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS AND NONAPPEARANCE**
FILED BY PLN ON 09/16/2025
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 16, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Marco Salmeron (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract and Common Counts (Open Book Account, Account Stated, Money Had and Received, Goods Sold and Delivered, Money Lent and Money Paid at Defendant’s Special Instance and Request) based on the allegation that Defendant became indebted in the amount of \$13,912.29 on a credit card account. See Complaint filed January 24, 2024, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Defendant’s Answer was filed June 18, 2024. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed June 18, 2024.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered July 3, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed

Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$13,912.29. See Deemed Admitted Order; see also RFAs attached to Declaration of Pearse F. Early filed March 17, 2025, attached as part of **Exhibit B** to the Request for Judicial Notice filed September 16, 2025 (“RJN”).

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Arguably, the RFAs do not contain a catch all admission to the effect that there is no cognizable defense to the liability that would negate all of the pled affirmative defenses. See Code Civ. Proc. § 438(c)(1)(A) (“[i]f the moving party is a plaintiff,” a motion for judgment on the pleadings may be made on the grounds that “...the complaint states facts sufficient to constitute a cause or causes of action against the defendant **and the answer does not state facts sufficient to constitute a defense to the complaint.**”) (Emphasis added).

While some of the affirmative defenses are expressly negated by the admissions made as part of the Deemed Admitted Order, others are not. For example, the Answer pleads the defenses of laches and estoppel. See Answer, p. 2, ¶4. There is no RFA which admitted that any of those particular affirmative defenses is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit B**, RFAs Nos. 1 through 10. There is an RFA that constitutes an admission that “If YOU have CREDIT DEFENSE, admit that YOU do not qualify for its benefits.” See *id.* at RFA No. 10. However, as defined, it is evident that the term “CREDIT DEFENSE” only refers to “any debt cancellation agreement between YOU and PLAINTIFF...” See *id.* at RFA No. 9.

Nonetheless, the Court concludes here that the admission made to the effect that “YOU owe this propounding party” implies an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Breach of Contract (1st Cause of Action) and Common Counts (2nd Cause of Action). As to the 2nd Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Open

Book Account, Account Stated and Money Lent. The Court need not consider the other alternative theories of liability (Money Had and Received, Goods Sold and Delivered, and Money Paid at Defendant's Special Instance and Request).

2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action and 2nd Cause of Action.
3. Defendant became indebted in the amount of \$13,912.29 on the subject credit card account, which amount is due and owing to Plaintiff.

Costs

No memorandum of costs was filed as part of the moving papers. Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L24-03014
CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON**
09/09/2025
FILED BY: CAPITAL ONE, N.A.
TENTATIVE RULING:

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion for Judgment on the Pleadings on September 9, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Karen L Jefferson (the "Defendant") admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and